

UNITED LAWYERS

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ELIZABETH SORIANO,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
LUIS LINARES, SHIELD # 027482,
INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER SHANIQUA CLARK,
SHIELD # 008981, INDIVIDUALLY AND AS A
POLICE OFFICER, SGT JOHN STEVKO,
SHIELD # 4394, 42ND PCT., INDIVIDUALLY AND
AS A POLICE OFFICER,

Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 21 day of DECEMBER, 2015

EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff

COUNTY CLERK
BRONX COUNTY

2016 JAN -6 AM 10:53

RECEIVED

499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Luis Linares
Police Officer Shaniqua Clark
Sgt John Stevko
c/o 42nd pct.

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AS A POLICE OFFICER,

Defendants.

-----X

The plaintiff, Elizabeth Soriano, by her attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers and correction officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 19th day of March, 2015, Police Officer Luis Linares, hereinafter referred to as "Linares" was

employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 42nd pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield number is 027482

4. Upon information and belief at all times hereinafter mentioned and on the 19th day of March, 2015, "Linares", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 19th day of March, 2015, Police Officer Shaniqua Clark, hereinafter referred to as "Clark" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 42nd pct, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief her shield number is 008981.

6. Upon information and belief at all times hereinafter mentioned and on the 19th day of March, 2015, "Clark" was acting within the scope of her employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 19th day of March, 2015, Sgt. John Stevko, hereinafter referred to as "Stevko" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 42nd pct., and at all relevant times set forth below acted in the capacity of a police officer.

8. Upon information and belief at all times hereinafter mentioned and on the 19th day of March, 2015, "Stevko", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

9. Upon information and belief Stevko, on March 19 2015 was Linares' and Clark's

supervisor.

10. Collectively Linares, Clark and Stevko will hereafter be referred to as the "officers".

11. Upon information and belief, on March 19, 2015 the "officers", individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines, Police Legal Memorandum, Police Interim Orders, and Police Administrative Orders.

12. On the 19th day of March, 2015, plaintiff Elizabeth Soriano, hereinafter referred to as "Soriano" was a resident of the State of New York, County of Bronx.

13. That on March 19, 2015, at approximately 9:00 a.m. the plaintiff, Soriano, was lawfully walking in the vicinity of 3rd Avenue and East 168th Street, Bronx, NY, hereinafter referred to as "the location".

14. At that time and place she was accompanied by another individual

15. At that time and location, three officers, upon information and belief the named defendant "officers" exited a van and the plaintiff was stopped absent reasonable suspicion or probable cause..

16. The plaintiff had committed no crime and was not engaged in any criminal or suspicious activity when she was stopped, grabbed and seized.

17. Officer Clark searched the plaintiff's person and her possessions, including her handbag and contents therein.

18. Upon information and belief Clarke found a pill(s) inside the plaintiff's purse located within said handbag.

19. Despite the fact that the search and seizure was bad, and despite the fact that the fact that the plaintiff informed the officers that the pill was clonazepam and for which the plaintiff possessed a prescription, Stevko ordered the plaintiff to be handcuffed and arrested.

20. Plaintiff takes said medication, as one of many medicines prescribed to her to treat her bi-polar disorder and panic disorder.

21. Clark handcuffed Soriano and the plaintiff was arrested.

22. The plaintiff was held in a van for in excess of an hour.

23. The plaintiff was transported to the 42nd pct.

24. At the 42nd pct., the plaintiff was searched a second time and placed in a holding cell.

25. The plaintiff was searched in a bathroom, with the door open and males outside the door.

26. The plaintiff was fingerprinted and handcuffed.

27. Officers attempted to question the plaintiff, without reading her rights, questioning the plaintiff about various illegal activities of which she had no information. Afterward she was placed back inside a cell.

28. In all the plaintiff was held in custody for in excess of 24 hours before she was arraigned before a judge

28. The plaintiff was arraigned on March 20, 2015 and falsely charged with having committed the crimes of criminal possession of a controlled substance in the seventh degree, a class a misdemeanor, on docket number 2015BX013254..

29. The criminal court complaint was signed by defendant Linares based upon

information provided to him by Clark.

30. Upon information and belief the arrest was approved by Stevko.

31. Upon information and belief Linares met with the District Attorney's Office, Bronx County and falsely informed them that he observed an unapprehended individual hand the plaintiff a small object, and based on his observation, Clark stopped the plaintiff and recovered the pills from plaintiff's wallet which was inside her purse.

32. The plaintiff was released on her own recognizance at arraignment.

33. Clark signed a supporting affidavit used to prosecute the plaintiff for a crime that she did not commit.

34. The plaintiff was caused to appear in court numerous times before the charges were dismissed on July 27, 2015.

35. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

36. That 50(h) hearings were held on December 29, 2015.

37. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

38. That this action is commenced within one year and 90 days after the cause of action arose.

39. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the

exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

40. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "39" with the same force and effect as if more fully and at length set forth herein.

41. That beginning on or about the 19th day of March, 2015, at or about approximately 9:00 a.m. at or near the "location" until the plaintiff's arraignment on March 20, 2015, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

42. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes.

43. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

44. That the defendants, their agents servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; she did not consent to the confinement; and the confinement was not otherwise privileged

45. That the defendants continued to confine and imprison the plaintiff in excess of 24 hours without being arraigned.

46. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

47. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "47" with the same force and effect as if more fully and at length set forth herein.

49. That beginning on or about the 19th day of March, 2015, at or about approximately 9:00 a.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against her will under full force of arms..

50. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

51. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.

52. That the defendants, their agents servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

53. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

54. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

55. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and affect as if more fully and at length set forth herein.

56. The plaintiff was seized, searched, held, handcuffed, and held in handcuffs for an excessive length of time by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including the defendant "officers".

57. That all said contact was committed without the plaintiff's permission or consent.

58. That all said contact was unlawful and without privilege.

59. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "officers", was offensive to plaintiff and caused her to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury and/or discomfort.

60. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

61. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE

62. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and affect as if more fully and at length set forth herein.

63. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising and promoting as and for its employees, defendant "officers", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to

properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

64. That defendant "officers" while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his or her police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his or her police dates; in that the police department permitted or condoned the illegal stop and frisk; the improper search and seizure, the false arrest, and/or false documentation submitted by these and other officers; the failure to intervene and/or mitigate; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

65. That the aforesaid occurrence, to wit: search and seizure, the assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants "officers" without any negligence on the part of the plaintiff contributing thereto.

66. That by reason of the aforesaid, the plaintiff, was imprisoned, lost her freedom, was maliciously prosecuted and she was thereby damaged.

67. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
ON BEHALF OF THE PLAINTIFF UNDER
N.Y. LOCAL LAW NO. 71

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "67" with the same force and effect as if more fully and at length set forth herein.

69. That on or about the 19th day of March, 2015 at or about approximately 9:00 a.m. at the "location" the "officers" were present thereat as part of their regular and official employment as police officers for the defendant, "City".

70. Plaintiff was lawfully and properly thereat, when the "officers" acting as agents, servants and/or employees of the defendant "City", forcibly stopped, seized and searched the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity.

71. That upon information and belief the Plaintiff was stopped, questioned, and frisked because she is a Latino female.

72. That all acts committed by "the officers" and other agents servants, employees and/or agents of the defendant "City" were committed within the scope of their employment and under color of law.

73. That said acts constituted an illegal action upon the Plaintiff based upon "bias-based profiling" by all named Defendants.

74. That by reason of the aforesaid, the plaintiff, was imprisoned, lost her freedom, was confined, stressed, and she was thereby damaged.

75. That by reason of the aforesaid, the plaintiff has been damaged and is seeking

injunctive and/or declaratory relief, mandating the required use of bodily cameras by all officers engaged in street narcotics detail, other than hand to hand undercover officers, and attorney fees.

AS AND FOR A SIXTH CAUSE OF ACTION:
FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST LINARES, CLARK AND STEVCO

76. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "90" with the same force and effect as if more fully and at length set forth herein.

77. That on or about the 19th day of March, 2015 at or about approximately 9:00 a.m. at the "location" the "officers" were present thereat as part of their regular and official employment as police officers for the defendant, "City".

78. Plaintiff was lawfully and properly at the "location", when the "officers", individually and/or collectively, acting as agents, servants and/or employees of the defendant "City", forcibly stopped, seized and searched the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity.

79. The "officers", individually and/or collectively, handcuffed and falsely arrested the plaintiff.

80. The "officers", individually and/or collectively filed or conspired to file false statements, paperwork, and gave, and/or conspired to give, false information regarding the circumstances of the plaintiff's search and/or arrest, in order to justify the illegal search and seizure of the plaintiff.

81. The "officers", individually and/or collectively filed or conspired to file false statements, paperwork, and gave, and/or conspired to give, false information regarding the circumstances of the plaintiff's search and/or arrest, in order to justify the false arrest of the plaintiff.

82. Stevko, Linares and/or Clark failed to intervene, mitigate, stop or report the illegal conduct complained of herein, and instead participated and were complicit in the conduct.

83. That all acts committed by "the officers" and other agents servants, employees and/or agents of the defendant "City" were committed within the scope of their employment and under color of law.

84. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of her rights and liberties as set forth in the Constitutions of the United States, i.e. the Fourth and Fourteenth Amendments, and of Constitution of the State of New York and under 42 U.S.C. Section 1983.

85. That the unlawful and illegal conduct of defendants "officers" deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.

c) The right to Due Process Law.

d) The right to equal protection under the law.

86. That by reason of the aforesaid violations, use of force, seizure of plaintiff's person, her false arrest and false imprisonment, assault and battery, making false statements, and malicious prosecution the defendant, the Police "Officers" violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

87. That as a direct proximate result of "the officers" actions plaintiff was subjected to great indignities and humiliation, loss of freedom, imprisonment, malicious prosecution and pain and distress of mind and body.

88. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR MALICIOUS PROSECUTION

89. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "88" with the same force and affect as if more fully and at length set forth herein.

90. That the "officers" as agents, servants and/or employees of the City of New York, maliciously prosecuted the plaintiff for crimes that they knew she did not commit, and/or that

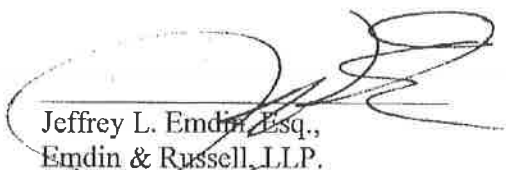
was based upon an illegal search and seizure.

91. That as a result of said malicious prosecution the plaintiff was caused to attend numerous court appearances until all charges were dismissed on July 27, 2015.

92. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact on the First through Seventh causes of Action, plus costs, attorney's fees, punitive damages (on the Sixth cause of action), and/or declaratory and injunctive relief (on the Fifth cause of action), and such other and further relief as to the Court seems just and proper on the First through the Seventh causes of action.

DATED: New York, New York
December 2, 2015



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

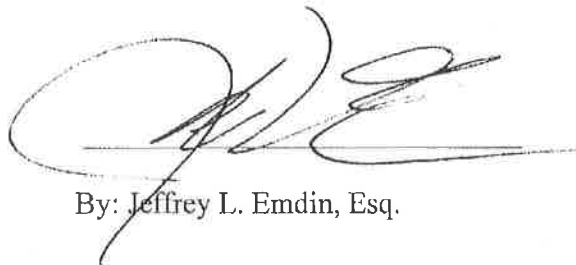
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
December 29, 2015

A handwritten signature in black ink, appearing to read 'JE EMDIN', is written over a horizontal line.

By: Jeffrey L. Emdin, Esq.